

Smt. Sushma Yadav & Ors. vs State Of U.P. & Another on 6 November, 2019

Author: Pankaj Bhatia

Bench: Pankaj Bhatia

HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH

Court No. - 16

Case :- U/S 482/378/407 No. - 5514 of 2017

Applicant :- Smt. Sushma Yadav & Ors.

Opposite Party :- State Of U.P. & Another

Counsel for Applicant :- Salil Kumar Srivastava

Counsel for Opposite Party :- Govt. Advocate, Amrit Preet Singh, Smt. Prabhjot Kaur

Connected with

Case :- U/S 482/378/407 No. - 7475 of 2018

Applicant :- Bholu Nath Yadav & Others

Opposite Party :- State Of U.P. & Another

Counsel for Applicant :- Salil Kumar Srivastava, Sadhu Sharan Chaubey

Counsel for Opposite Party :- Govt. Advocate, Shailendra Kr. Singh

And

Case :- CRIMINAL REVISION No. - 1180 of 2016

Revisionist :- Smt. Sushma Yadav

Opposite Party :- Santosh Kumar Yadav

Counsel for Revisionist :- Mukteshwar Mishra, Salil Kumar Srivastava

Counsel for Opposite Party :- Amrit Preet Singh

And

Case :- U/S 482/378/407 No. - 12 of 2018

Applicant :- Smt. Sushma Yadav & Anr.

Opposite Party :- State Of U.P. Thru. Its Prin. Secy.(Home) & Ors.

Counsel for Applicant :- Sadhu Sharan Chaubey, Salik Srivastava

Counsel for Opposite Party :- Govt. Advocate, Kunwar Mukul Rakesh, Kunwar Shushant Prakash

And

Case :- U/S 482/378/407 No. - 4727 of 2019

Applicant :- Akhilesh Yadav & Ors.

Opposite Party :- State Of U.P. & Anr.

Counsel for Applicant :- Salil Kumar Srivastava, Sadhu Sharan Chaubey

Counsel for Opposite Party :- G.A., Kunwar Shushant Prakash

And

Case :- U/S 482/378/407 No. - 4925 of 2019

Applicant :- Santosh Kumar Yadav

Opposite Party :- State Of U.P. & Ors.

Counsel for Applicant :- Kunwar Shushant Prakash

Counsel for Opposite Party :- G.A., Sadhu Sharan Chaubey

Hon'ble Pankaj Bhatia, J.

The aforesaid cases are listed for disposal, except Criminal Misc. Case U/s 482 No. 4925 of 2019. With the consent of counsel for the parties, the record of Criminal Misc. Case U/s 482 No. 4925 of 2019 is being summoned for its disposal.

These cases have a chequered history although not a very heartening one arising out of matrimonial discord in between wife Smt. Sushma Yadav and the husband Santosh Kumar Yadav. The said two entered into a matrimonial alliance and were blessed with a son, who is said to be aged about 7 years at present. However, on account of the litigations in between the parties, the total number of cases pending against each other in various courts exceed 23 in number.

When the matter was being argued today, an effort was made for reconciliation, in view of the genesis of the litigation being a matrimonial discord in between the husband and the wife and also in the quest for ensuring the welfare of the child, who is caught in between web of cases launched against each other and the families. With the co-operations of the counsels, the Court could convince the parties to try and mutually settled the disputes amongst themselves. The matter was posted after lunch for permitting the parties to explore the possibility of settlement. When the matter was taken up after lunch, counsel for the parties have shown maturity, which is expected from the seniors at the Bar and have persuaded the parties for settlement of the disputes.

Sri Salil Kumar Srivastava, learned counsel representing the wife and her relatives and friends in various litigations has offered that if the matter was finally settled in between the parties, he would have no objection. Similarly, Sri Kunwar Mukul Rakesh, learned Senior Advocate assisted by Sri Amrit Preet Singh, learned counsel appearing on behalf of opposite party-husband have also accepted that if all the matters are settled, there is no objection to the settling of the disputes that have arisen in between the parties.

The litigation pending in between the parties are summarized as under:-

Cases filed by Wife side:-

1. Complaint Case No. 8737 of 2013 (Sushma Yadav v. Santosh Yadav & others), under Sections 323, 504, 506 I.P.C., P.S. B.K.T. Lucknow, pending before A.C.J.M.-I, Lucknow.
2. Complaint Case No. 1462 of 2015 (Sushma Yadav v. Santosh Yadav & others), under Sections 352, 498-A, 457 IPC and Section 3/ 4 D.P. Act, P.S. B.K.T. Lucknow pending before A.C.J.M.-I, Lucknow.
3. Complaint Case No. 0085 of 2016 (Sushma Yadav v. Santosh Yadav & others), under Section 12 D.V. Act, P.S. B.K.T. Lucknow, pending before A.C.J.M.-I, Lucknow.
4. Misc. Case No. 1012 of 2017 (Akhilesh Yadav v. Muneshwar Yadav & others), under Section 340 Cr.P.C., pending before A.C.J.M.-I, Lucknow.

5. Complaint Case No. 1207 of 2017 (Akhilesh Yadav v. Santosh Yadav & others), pending in the Court of C.J.M., Lucknow.
6. Criminal Misc. Case No. 1372 of 2014 (Sushma Yadav v. Santosh Yadav), under Section 125 Cr.P.C., pending before Additional Principal Judge-5, Family Court, Lucknow.
7. Regular Suit No. 2616 of 2013 (Sushma Yadav v. Santosh Yadav) under Section 13 of Hindu Marriage Act, pending before Additional Principal Judge-6, Family Court, Lucknow.
8. Criminal Misc. Case No. 2-C/15 (Sushma Yadav v. Santosh Yadav) under Section 24 of Hindu Marriage Act, pending before Additional Principal Judge-6, Family Court, Lucknow.
9. Criminal Misc. Case No. 263-C of 2015 (Sushma Yadav v. Santosh Yadav) under Section 25 of Hindu Marriage Act, pending before Additional Principal Judge-6, Family Court, Lucknow.
10. Criminal Misc. Case No. 260-C of 2015 (Sushma Yadav v. Santosh Yadav), under Section 27 of Hindu Marriage Act, pending before Additional Principal Judge-6, Family Court, Lucknow.
11. Regular Suit No. 0096 of 2015 (Sushma Yadav v. Santosh Yadav), under Section 25 of G.W. Act, pending before Additional Principal Judge-6, Family Court, Lucknow.
12. Criminal Misc. Application No. 1083 of 2018 (Sushma Yadav v. Santosh Yadav) under Section 340 Cr.P.C. pending before A.D.J.-14, Lucknow.
13. Criminal Case No. 26 of 2014, arising out of Case Crime No. 319 of 2012, under Sections 344, 506, 201 IPC, P.S. B.K.T. Lucknow, pending in the Court of A.C.J.M.-, Lucknow impugned in Criminal Misc. Case U/S 482/378/407 No. - 5514 of 2017.
14. Criminal Complaint Case No. 35255 of 2017 arising out of Case Crime No. 110 of 2017, under Sections 323,504 I.P.C., P.S. Wazirganj, Lucknow, Pending in the Court of A.C.J.M.-I, Lucknow, impugned in Criminal Misc. Case U/S 482/378/407 No. - 12 of 2018.
15. Criminal Revision No. 1180 of 2016 (Sushma Yadav v. Santosh Kumar Yadav) against the order dated 17.11.2016 passed by Principal Judge, Family Court, Lucknow in Case No. 1372 of 2014.
16. Criminal Misc. Case U/S 482/378/407 No. - 7475 of 2018 (Bhola Nath Yadav & others v. State of U.P. & Another). (Now Infructuous)

17. Complaint Case No. 1458 of 2016 (Akhilesh Yadav & Others v. State of U.P. & others) under Sections 363/511, 452, 323, 504, 506 I.P.C., P.S. Madiyawa, Lucknow, impugned in Criminal Misc. Case U/S 482/378/407 No. - 4727 of 2019.

Cases filed by Husband side:-

1. Case No. 26 of 2014 (State v. Sushma Yadav & others) arising out of Case Crime No. 319 of 2012, under Section 344, 506, 201 I.P.C., P.S. B.K.T. Lucknow, pending before A.C.J.M.-I, Lucknow.
2. Criminal Misc. Case No. 1792 of 2015 (Santosh Yadav v. Sushma Yadav) under Section 340 Cr.P.C., pending before A.C.J.M.-I, Lucknow.
3. Complaint Case No. 1458 of 2016 (Muneshwar Yadav v. Bhola and others) under Sections 363, 511, 452, 323, 504, 506 I.P.C., P.S. Madiyan, Lucknow pending before A.C.J.M.-I, Lucknow.
4. Complaint Case No. 35255 of 2017 arising out of Case Crime No. 110 of 2017, under Sections 323, 504 I.P.C., P.S. Wazirganj, Lucknow (Smt. Kusum Yadav v. Akhilesh Yadav and others (treated as complaint case).
5. Criminal Revision No. 718 of 2018 (Santosh Yadav v. Sushma Yadav) (against order rejecting discharge application passed in Criminal Complaint Case No. 8737 of 2013) pending before A.D.J.-18, Lucknow.
6. Criminal Misc. No. 4925 of 2019, under Section 482 Cr.P.C. (Santosh Kumar Yadav v. State of U.P. & others), against the order dated 27.4.2019 passed by Special Judge, P.S. Act-IX, Lucknow in Appeal No. 302/2017 under Section 341 Cr.P.C. (Santosh Kumar Yadav v. State of U.P. and Another), pending before this Court.

Sri Srivastava states that on consultation with her client, it is agreed that all the litigations be given a quietus on the following conditions:-

1. The parties file fresh proceedings for divorce by mutual consent under Section 13 (B) of the Hindu Marriage Act, which may be decided expeditiously within a time bound period as may be fixed by this Court. He argues that the filing of the divorce petition should be indicated in the order itself as well as the waiver of cooling off period be provided, in view of the fact that there is irretrievable breakdown of marriage and as laid down by the Apex Court in Amardeep Singh v. Harveen Kaur; (2017) 8 SCC 746.
2. Sri Srivastava agrees that his client shall not insist on any alimony either permanent or otherwise as a condition for grant of divorce by mutual consent.

3. It is also agreed by Sri Srivastava that the custody of child Master Subham Yadav @ Vansh shall remain with the father, who is the natural guardian and the mother shall not claim the custody of child.

Counsel for the opposite parties appearing on behalf of husband and the related parties agreed to all the three conditions and further requests that in the discretion of the Court all the compliances be made time bound and the proceedings pending in various Courts be quashed in exercise of powers under Section 482 Cr.P.C., read with Article 227, Article 226 of the Constitution of India only to give quietus to the litigations, which is pending in between the parties. It is also agreed in between the parties that no claim in respect of or arising out of the matrimonial alliance shall be claimed by either of the parties against each other including the benefits accruing owing to Government service, in which the opposite party-husband is said to have been in vocation at present.

The parties agreed that they shall not raise any claim against each other in respect of or arising out of the matrimonial alliance which otherwise they would have been entitled to under either the Statute or the Rules applicable with regard to their respective vocations.

In view of the fact that the parties have mutually come up with the proposal to which both the parties are agreeable this Court in the quest of giving quietus to the litigations as well as keeping in view the larger interest of the welfare of the child, this Court provides as under:-

The parties, namely, Smt. Sushma Yadav and Santosh Kumar Yadav shall jointly file an petition for divorce on the ground of mutual consent under Section 13 (B) of the Hindu Marriage Act, 1955 without levelling any allegations against each other of any nature except on the ground that the parties are unable to stay with each other and, therefore, are seeking divorce by mutual consent. The said petition shall be filed before the Family Court, Lucknow by 2nd December, 2019. Both the parties shall present themselves before the Family Court on 2nd December, 2019 at 11:00 A.M. for filing the said petition and for making the requisite documents available for filing it before the Family Court. The parties shall also file an application, simultaneously on the date of filing of the divorce petition, seeking waiver of cooling off period which the Family Court, Lucknow directed to decide and grant and thereafter proceed to pass an order on the application seeking divorce by mutual consent under Section 13 (B) of the Hindu Marriage Act, 1955. The petition for divorce shall specifically contain an affidavit on behalf of the wife that she will not claim any maintenance or alimony arising out of matrimonial alliance, in which they had entered into. She will specifically discloses in her petition that she will not want custody of child, Master Subham Yadav @ Vansh. On the filing of the said petition, the Family Court, as directed, shall pass decree of divorce by mutual consent within a period not exceeding 15 days from the date of filing of the petition. The Family Court is further directed to send a copy of this order to the Senior Registrar of this Court for it being kept on the record within a further period of 15 days from the date of passing of the decree of divorce by mutual consent.

In view of the above, the proceedings of following cases are hereby quashed:-

1. Complaint Case No. 8737 of 2013 (Sushma Yadav v. Santosh Yadav & others), under Sections 323, 504, 506 I.P.C., P.S. B.K.T. Lucknow, pending before A.C.J.M.-I, Lucknow.
2. Complaint Case No. 1462 of 2015 (Sushma Yadav v. Santosh Yadav & others), under Sections 352, 498-A, 457 IPC and Section 3/ 4 D.P. Act, P.S. B.K.T. Lucknow pending before A.C.J.M.-I, Lucknow.
3. Complaint Case No. 0085 of 2016 (Sushma Yadav v. Santosh Yadav & others), under Section 12 D.V. Act, P.S. B.K.T. Lucknow, pending before A.C.J.M.-I, Lucknow.
4. Criminal Misc. Case No. 1012 of 2017 (Akhilesh Yadav v. Muneshwar Yadav & others), under Section 340 Cr.P.C., pending before A.C.J.M.-I, Lucknow.
5. Complaint Case No. 1207 of 2017 (Akhilesh Yadav v. Santosh Yadav & others), pending in the Court of C.J.M., Lucknow.
6. Criminal Misc. Case No. 1372 of 2014 (Sushma Yadav v. Santosh Yadav), under Section 125 Cr.P.C., pending before Additional Principal Judge-5, Family Court, Lucknow.
7. Regular Suit No. 2616 of 2013 (Sushma Yadav v. Santosh Yadav) under Section 13 of Hindu Marriage Act, pending before Additional Principal Judge-6, Family Court, Lucknow.
8. Criminal Misc. Case No. 2-C/15 (Sushma Yadav v. Santosh Yadav) under Section 24 of Hindu Marriage Act, pending before Additional Principal Judge-6, Family Court, Lucknow.
9. Criminal Misc. Case No. 263-C of 2015 (Sushma Yadav v. Santosh Yadav) under Section 25 of Hindu Marriage Act, pending before Additional Principal Judge-6, Family Court, Lucknow.
10. Criminal Misc. Case No. 260-C of 2015 (Sushma Yadav v. Santosh Yadav), under Section 27 of Hindu Marriage Act, pending before Additional Principal Judge-6, Family Court, Lucknow.
11. Regular Suit No. 0096 of 2015 (Sushma Yadav v. Santosh Yadav), under Section 25 of G.W. Act, pending before Additional Principal Judge-6, Lucknow.
12. Criminal Misc. Case No. 1083 of 2018 (Sushma Yadav v. Santosh Yadav) under Section 340 Cr.P.C. pending before A.D.J.-14, Lucknow.

13. Complaint Case No. 1458 of 2016 (Muneshwar Yadav v. Bhola Yadav & others) under Sections 363/511, 452, 323, 504, 506 I.P.C., P.S. Madiyawa, Lucknow, pending before A.C.J.M.-I, Lucknow.

14. Criminal Case No. 26 of 2014 (State v. Sushma Yadav & others) arising out of Case Crime No. 319 of 2012, under Section 344, 506, 201 I.P.C., P.S. B.K.T. Lucknow, pending before A.C.J.M.-I, Lucknow.

15. Criminal Misc. Case No. 1792 of 2015 (Santosh Yadav v. Sushma Yadav) under Section 340 Cr.P.C., pending before A.C.J.M.-I, Lucknow.

16. Complaint Case No. 1458 of 2016 (Muneshwar Yadav v. Bhola and others) under Sections 363, 511, 452, 323, 504, 506 I.P.C., pending before A.C.J.M.-I, Lucknow.

17. Complaint Case No. 35255 of 2017 arising out of Case Crime No. 110 of 2017, under Sections 323, 504 I.P.C., P.S. Wazirganj, Lucknow (Smt. Kusum Yadav v. Akhilesh Yadav and others (treated as complaint case)).

18. Criminal Revision No. 718 of 2018 (Santosh Yadav v. Sushma Yadav) against order rejecting discharge application passed in Criminal Complaint Case No. 8737 of 2013) pending before A.D.J.-18, Lucknow.

The aforesaid cases vis a vis Criminal Misc. Case U/s 482 Nos. 5514 of 2017, 7475 of 2018, 12 of 2018, 4727 of 2019 and 4925 of 2019 and Criminal Revision No. 1180 of 2016 are disposed off in terms of the directions, given above.

Order Date :- 6.11.2019 SR